

Calendar Line # 5
Case Name Ramsin Nigjeh et al vs FCA US LLC
Case No. 25CV459495
Motion to Compel Initial Disclosures Under Code of Civil Procedure 871.26; Sanctions <u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Ramsin Nigjeh (“Nigjeh”)’s July 9, 2022 purchase of 2022 Jeep Wrangler, vehicle identification number: 1C4JJXR69NW205757 (“Subject Vehicle”) that was manufactured and or distributed by Defendant FCA US LLC (“FCA”). (Complaint). On February 21, 2025, Plaintiff filed a Complaint alleging five causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; (5) negligent repair; (6) fraudulent inducement concealment. (<i>Id.</i>). Defendant FCA filed an Answer on May 12, 2025. Before the Court is Plaintiff Nigjeh’s motion to compel Defendant FCA to comply with Code of Civil Procedure section 871.26 by producing documents required under subdivisions (h)(6)-(10), (12), and (13), and sanctions. Plaintiff filed this motion on January 9, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on defense counsel on that same day. On September 9, 2026, Plaintiff filed an opposition brief. The Court has carefully reviewed the following: Plaintiff’s notice of motion, memorandum of points and authorities (“MPA”), Declaration of Brena Rucker in support of the motion and attached Exhibits 1- 7; proof of service (totaling 88 pages); Defendant’s Opposition (totaling 6 pages); Declaration of Adam River in support of defense Opposition (totaling 4 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 871.26, subdivision (h): The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b): (6) Motor vehicle information reports, including build documentation, component information, and delivery details. (7) Entire warranty transaction history for the motor vehicle. (8) Listing of required field actions applicable to the motor vehicle. (9) Published technical service bulletins (“TSBs”) 1 for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (10) Published information service bulletins (“ISBs”) for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle. (11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle. (12) Warranty policies and procedure manuals. (13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(Code of Civ. Proc., 871.26(h)(6)-(13)).

The legislative intent behind Code of Civil Procedure section 871.26 was to streamline civil procedure associated with claims brought under the Song-Beverly Act by enforcing early exchange of discovery, including depositions within 120 days after filing of the answer or other responsive pleadings. (*Id.*; California Bill Analysis, A.B. 1755 Assem., 8/30/2024).

III. ANALYSIS

Plaintiff Nigjeh moves for an order compelling Defendant FCA to comply with initial disclosures and provide documents under Code of Civil Procedure section 871.26 (h)(6)-(13) and monetary sanctions in the amount of \$2,500.00 against Defendant. (Plaintiff's Motion, p. 2).

Plaintiff asserts that Defendant was required to provide documents within 60 days after filings its answer. (*Id.*, p. 7). Specifically, Plaintiff seeks to compel production of six documents: "(1) Warranty Policies and Procedure Manual ("WPPM"); (2) Pre-Delivery Inspection ("PDI") records showing what defects FCA knew about the vehicle's condition at the time of sale; (3) the entire warranty transaction history with missing diagnostic trouble code ("DTC") results and software version information; (4) field action and recall documentation; (5) applicable technical service bulletins ("TSBs") and information service bulletins ("ISBs"); and (6) service manuals for systems the dealer diagnosed and repaired. (*Id.*, p. 6; Declaration of Rucker ("Rucker Decl.") ¶¶ 2-8; Exhibits 1-7). These documents are critical as it contains policies on repairs, warranty claim processing, comeback, s escalation procedure, internal quality control protocols, critical customer VIN designation criteria, report repair report type procedures, part return racking systems, dealership requirements for concern, cause, and correction documentation, labor operation codes for diagnostic procedures, technical narratives, pre-delivery inspection protocols, guidelines for warranty claim approvals and denials, warranty policies and procedures manual, motor vehicle information reports, entire warranty transaction history, applicable bulletins including for engine/powertrain effects and electrical/infotainment defects, and service manuals. (*Id.*, at p. 8-16; Rucker Decl. ¶¶ 2-8). Plaintiff cites that FCA has a pattern of withholding mandatory documents under section 871.26(h) and cites that refusal to purchase a vehicle without reviewing the repair and warranty history and other available documents constitute a willful violation. (*Id.*, citing *Kwan v. Mercedes-Benz of N. Am., Inc.*, (1994) 23 Cal. App. 4th 174, 186). Plaintiff asserts that FCA's failure to provide documents prevents Plaintiff from discovering admissible evidence finding FCA liable under the Song-Beverly Act and demonstrates willful disregard. (*Id.*, at p. 7).

In opposition, Defendant FCA counsel asserts that it has timely complied with initial disclosures under Code of Civil Procedure section 871.26 and provided over a thousand pages of documents including warranty repair records, warranty claim data, vehicle information reports, and technical service bulletins, recalls, sales documents, and related materials. (Opposition, p. 1; Rucker Decl. ¶¶ 9-10). Defendant FCA also emphasizes that it was Plaintiff who failed to comply with initial disclosures by serving initial production on July 21, 2025. (Opposition, p. 4). Defense served initial disclosure on June 19, 2025, over a month before the initial disclosure deadline, which was approximately July 12, 2025. (Rucker Decl. ¶¶ 8-9). FCA also sought a protective order to avoid risking improper dissemination of sensitive internal documents. (*Id.*, ¶¶ 11-12). Defense characterizes Plaintiff's motion as an attempt to obtain unlimited discovery, including confidential and proprietary business documents subject to a protective order. (*Id.*, p. 1-2). Section 871.26 does not require an expansive production of documents for speculative requests, including "all" internal databases, policies, STAR cases, engineering materials, and service literature that is not part of the actual repair history of the subject vehicle. Defense argues that Plaintiff failed to meet and confer prior to filing the instant motion and only sent letter weeks after filing the motion. (*Id.*, at p. 2; Rucker Decl. ¶ 13).

The Court finds that Defendant FCA has demonstrated efforts to substantially comply with initial disclosure under Code of Civil Procedure section 821.26. Defense produced over a thousand pages of documents a month before disclosure deadlines, which demonstrates an effort to comply. Further, defense filed a stipulated protective order to address potentially confidential and propriety information, which FCA asserts is one of the reasons certain documents were not released. The Court DENIES the motion to compel at this juncture. Parties are to meet and confer about further production of documents according to Code of Civil Procedure sections 2031.280 and 2031.310.

IV. SANCTIONS

Code of Civil Procedure section 871.26, subdivision (j), subsection (2) provides in relevant part:

Unless the party failing to comply with this section shows **good cause**, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court **shall** impose sanctions as follows:

- (1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(Code of Civ. Proc., 871.26(j)(2))(emphasis added).

Here, Plaintiff seeks a total of \$2,500.00 in sanctions under Code of Civil Procedure section 871.26(j)(2) against Defendant FCA. (Plaintiff's Motion, p. 17). Plaintiff argues that Defendant's failure to comply with initial disclosures and produce documents under section 871.26(h) necessitates the imposition of sanctions. (*Id.*). Plaintiff disputes defense's assertion that the documents are publicly available and assert that FCA's bulletins and service manuals are on DealerCONNECT or its equivalent. (*Id.*).

In opposition, Defendant FCA asserts that sanctions are unwarranted as FCA has complied with section 871.26 and produced thousands of documents. (Opposition, p. 2). FCA acted asserts that at a minimum Defendant acted with substantial justification and in good faith in producing disclosures, while attempting to resolve confidentiality concerns through a stipulated protective order. (*Id.*, p. 2 and 4). Defense also argues that Plaintiff untimely served their initial production on. (*Id.*, p. 4). Thus, defense seeks a denial of sanctions or in the alternative a reduction in sanctions. (*Id.*).

The Court finds that Defendant has demonstrated good cause in complying with initial discovery set for in Code of Civil Procedure section 871.26. Defendant has demonstrated that it acted with substantial justification to produce relevant documents, while seeking a stipulated protective order regarding confidential and proprietary information. Thus, the motion for sanctions is DENIED.

V. CONCLUSION

Based on the foregoing, the Court DENIES the motion to compel and request for sanctions. The Court will prepare the formal Order.

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Calendar Lines # 6-7
Case Name Anh Truong et al vs Jalen Fooster-Barrino et al
Case No. 25CV460510
Motion to Compel Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, (Line #6); and Motion for Admissions Deemed Admitted (Line #7)
<u>I. BACKGROUND</u> This matter was continued from February 24, 2026, at that time, counsel for plaintiff, Clinton Keyworth and counsel for the defendant, Sean Moriarty appeared and informed the court that the parties reached an agreement. Mr. Keyworth withdrew his motion for monetary sanctions. No notice of settlement was filed. The motions were continued to March 19, 2026, where parties requested a second continuance to this date. <u>II. LEGAL ANALYSIS</u> Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (<i>Id.</i>, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See <i>Id.</i>, § 2030.290; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)). California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (<i>Pacific Tel. & Tel. Co. v. Superior Court</i> (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (<i>Id.</i> at 172; <i>see also</i>, <i>Pettie v. Superior Court</i> (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (<i>Pacific Tel. & Tel. Co., supra</i>, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (<i>Norton v. Superior Court</i> (1994) 24 Cal.App.4th 1750, 1761). “As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (<i>Id.</i> at p. 541, citing <i>West Pico Furniture Co. v. Superior Court</i> (1961) 56 Cal.2d 407, 422). Code of Civil Procedure section 2031.010(d) allows a party to “demand that any other party allow the party making the demand, or someone acting on the demanding party’s behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it.” Such a demand may be “without leave of court at any time that is 10 days after the service of the summons on, or appearance by, the party to whom the demand is directed, whichever occurs first.” (Code Civ. Proc., § 2031.020(b)). “The party making a demand for inspection, copying, testing, or sampling shall serve a copy of the demand on the party to whom it is directed and on all other parties who have appeared in the action.” (Code Civ. Proc., § 2031.040). If no